

Suraj Pal v. Dakshinachal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 6 January 2016 · Writ-C No. 68225 of 2015 · **6.5 correction application to be decided in four weeks**

HEADNOTE

Writ disposed of with a time-bound direction that the consumer's application for correction under Clause 6.5 of the Electricity Supply Code, 2005 be decided by the competent authority within four weeks of production of the certified copy. The Court did not examine the bill on merits.

FACTUAL SUMMARY

Suraj Pal filed Writ-C No. 68225 of 2015 in the Allahabad High Court against Dakshinachal Vidyut Vitran Nigam Ltd. and another. He had already moved an application for correction of his electricity account under Clause 6.5 of the Electricity Supply Code, 2005, and sought a direction that the licensee decide it. Counsel for both sides were heard. The petition did not invite, and the record does not contain, any finding on the amount billed or the nature of the alleged error.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending 6.5 correction application

HOLDING

Where a consumer has filed an application for correction under Clause 6.5 of the Electricity Supply Code, 2005, the writ may be disposed of by directing the competent authority to decide that application within four weeks of production of a certified copy of the order, without any finding on the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 CORRECTION AND THE UNDERLYING BILL

The Court gave only a time-bound disposal direction and did not decide whether correction was due. ¶ 1